

CONSPIRACY.

* 33 EDWARD I. STAT. 2. A.D. 1304.(E)

Who be conspirators, and who be champertors.

CONSPIRATORS be they that do confeder or bind themselves by oath, covenant, or other alliance, that every of them shall aid and bear the other falsely and maliciously to indite, or cause to indite,(2) or falsely to move or maintain pleas;(3) and also such as cause children within age to appeal men of felony, whereby they are imprisoned and sore grieved;(4) and such as retain men in the country with liveries or fees for to maintain their malicious enterprises; and this extendeth as well to the takers as to the givers. (6) This ordinance and final definition of conspirators was made and accorded by the king and his council in his parliament the thirty-third year of his reign.

20 Hen. 7. f. 11—Fitz. Barre, 4—Kel. 81—Fitz. Consp. 2, 4, 5, 10, 13, 14, 15, 16, 19, 21, 22, 25—8 Co. 37. V. N. B. 56—F. N. B. 117. H.—Rast. 122—2 Inst. 562—3 Inst. 143.

* 33 EDWARD I. STAT. 3. A.D. 1305.(F)

The punishment of such as commit champerty.

(4) OUR lord the king, at the information of *Gilbert Rowbery*, a clerk of his council, hath commanded, That whosoever will complain himself of conspirators, inventors, and maintainors of false quarrels, and partakers thereof, and brokers of debates, that *Gilbert Thornton* shall cause them to be attached by his writ, that they be before our sovereign lord the king, to answer unto the plaintiffs by this writ following:

II. The king to the sheriff greeting.—We command you, that if A. of, &c. make you secure of prosecuting his claim, then put by

(E) That part only of this statute is in force which relates to conspirators, and from that is to be excepted what relates to "*stewards or bailiffs of great lords.*" *Report of the Judges.*

(F) "That part only of this statute is in force which relates to conspirators." *Report of the Judges.*

a This Gilbert Rowbery who framed the writ of conspiracy, was one of the judges of the court of K. B. 2 Inst. 562.